

candidate at such election, make or publish any false statement of fact in relation to the personal character or conduct of such candidate shall be guilty of an illegal practice within the meaning of the provisions of the Municipal Elections (Corrupt and Illegal Practices) Act, 1884, and shall be subject to all the penalties for and consequences of committing an illegal practice in the said Act mentioned, and the said Act shall be taken to be amended as if the illegal practice defined by this Act had been contained therein.

be an illegal
practice.
Injunction
against person
making false
statement.
47 & 48 Vict.
c. 70.

(2) No person shall be deemed to be guilty of such illegal practice if he can show that he had reasonable grounds for believing, and did believe, the statement made by him to be true.

(3) Any person who shall make or publish any false statement of fact as aforesaid may be restrained by interim or perpetual injunction by the High Court of Justice from any repetition of such false statement or any false statement of a similar character in relation to such candidate, and, for the purpose of granting an interim injunction, *prima facie* proof of the falsity of the statement shall be sufficient.

(4) A candidate shall not be liable nor shall be subject to any incapacity, nor shall his election be avoided, for any illegal practice under this Act committed by his agent, unless it can be shown that the candidate has authorised or consented to the committing of such illegal practice, or has paid for the circulation of the false statement constituting the illegal practice, or unless upon the hearing of an election petition the election court shall find and report that the election of such candidate was procured or materially assisted in consequence of the making or publishing of such false statements.

2. This Act may be cited as the Municipal Elections (Corrupt and Illegal Practices) Act, 1911, and shall be construed as one with the Municipal Elections (Corrupt and Illegal Practices) Act, 1884, and that Act and this Act may be cited together as the Municipal Elections (Corrupt and Illegal Practices) Acts, 1884 and 1911.

Short title and
construction.

CHAPTER 8.

An Act to remove certain doubts as to the true interpretation of the Merchant Shipping Acts, 1894 to 1906, in respect of the Payment of Seamen's Allotment Notes.

[18th August 1911.]

WHEREAS doubts have arisen as to the true interpretation of section one hundred and forty-one of the Merchant Shipping Act, 1894, and section sixty-two of the Merchant Shipping Act, 1906:

57 & 58 Vict.
c. 60.
6 Edw. 7. c. 48.

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Regulations as to allotment note.

1. By agreement with the master an allotment note may be granted to a seaman providing for—

- (a) payment of a greater sum than one half of the wages ;
- (b) payment at a period earlier than one month from the date of the agreement with the crew and at intervals more frequent than one month.

Short title.

2. This Act may be cited as the Merchant Shipping (Seamen's Allotment) Act, 1911.

CHAPTER 9.

An Act to amend the Public Libraries (Ireland) Acts, 1855 to 1902, as respects the provision of Art Galleries in County Boroughs and for other purposes incidental thereto. [18th August 1911.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Amendment of 18 & 19 Vict. c. 40, s. 8.

1.—(1) Where an art gallery is established in any county borough under the Public Libraries (Ireland) Acts, 1855 to 1902, whether before or after the passing of this Act, the rate which may be levied in that borough for the purposes of those Acts may exceed the limit of one penny in the pound imposed by section eight of the Public Libraries Act (Ireland), 1855, to the extent of not more than one halfpenny in the pound.

(2) Nothing in this section affects the provisions of any local Act extending the limit imposed by the said section eight.

Payment of expenses in connexion with the maintenance of the municipal gallery of modern art in the county borough of Dublin.

2.—(1) If the works of art contained in the institution known as "The Municipal Gallery of Modern Art" in the county borough of Dublin are at any time after the passing of this Act vested in or lent to the council of that borough for the use of any art gallery established by that council under the Public Libraries (Ireland) Acts, 1855 to 1902, the council may, if they think fit, with the sanction of the Local Government Board, pay and discharge any expenses or liabilities of any kind incurred by any person, whether before or after the passing of this Act, for or in connexion with the maintenance of that institution or the preservation of the works of art therein up to the time when those works are so vested in or lent to the council.